Internal Memo: New Rules for Holding Clients' Original Documents

Lom Sak Community Legal Aid Centre, Phetchabun · Ref. LSC-MEMO-2026-08 · 14 September 2026

To: All staff lawyers, paralegals, intake volunteers and front desk staff
From: Atchara Wongkhamchan, Managing Lawyer (Room 201, ext. 201)
Subject: Central custody of original documents, receipts and returns, effective 1 October 2026

1. Background

On 22 July 2026 the original land title deed of a client in a boundary dispute could not be found for 9 days. It was found in a closed file box sent to the archive by mistake. A court hearing had to be postponed. A review of open files in August found 61 originals held in case folders, desk drawers and two staff vehicles. The management meeting of 9 September 2026 decided as follows.

2. Decision

From 1 October 2026, no original client document may be kept in a case folder, desk drawer, bag or vehicle. Every original the centre accepts must be held in the fireproof document safe in the Records Room (Room 104, ground floor) and entered in the Original Documents Custody Register kept by the Document Custodian. Case folders and CaseNest will hold scanned copies only.

Until 30 September 2026 the responsible lawyer could keep an original in a locked desk drawer for up to 5 working days. That allowance is not replaced.

3. Which documents are covered

- Land title deeds and other land rights documents, including Nor Sor 3 certificates.
- House registration books, vehicle registration books and original birth or marriage certificates.
- Signed contracts, loan agreements, pawn tickets, court orders and judgments.

Thai national ID cards and passports are treated differently. Staff copy them and give them back before the client leaves the building. The only exception is when the document must be shown at court the next morning: the case lawyer may then hold it overnight in the safe, with the written approval of the Managing Lawyer recorded in CaseNest before 16:00 that day.

4. Receiving an original at the centre

1. Fill in receipt form LA-07 in two copies, listing each document with its number and the number of pages. The client signs both copies and keeps one.
2. Scan every page and upload the scan to the client's file in CaseNest under the tab "Originals held".
3. Seal the documents in a numbered tamper-evident envelope marked with the case number.
4. Hand the envelope to the Document Custodian in Room 104 before 16:00 on the same day. The custodian checks the contents and signs the register.

Fictional document created for testing a question-answering system. All names, figures and organisations are invented.

5. If you receive an original after 16:00, place the sealed envelope in the locked drop slot in the door of Room 104. The custodian opens the slot at 08:30 the next working day and records it.

Note. Intake volunteers may not accept originals at all. If a client arrives with originals for a first interview, the volunteer asks the duty lawyer to come to the front desk and complete the receipt.

5. Mobile clinics

At the Wednesday mobile clinic in Khao Kho and the monthly clinic at Nam Nao District Office, lawyers accept copies only. If a client is unable to travel because of age, disability or illness, the lawyer may accept up to 3 originals at the clinic. They must be sealed in the grey travel pouch on site, recorded on form LA-07, and handed to the Document Custodian by 10:00 on the next working day.

6. Responsibilities

- **Document Custodian** (Suwimon Thepkhamta, Room 104, ext. 104): keeps the safe keys and the Custody Register, checks every envelope on arrival, and carries out a full count of all originals on the last working Friday of each month.
- **Deputy Custodian** (Wiraphon Saengdao, paralegal, ext. 108): performs all custodian duties when Suwimon Thepkhamta is on leave or away.
- **Case lawyer**: completes the receipt and arranges the return to the client.
- **Managing Lawyer**: approves overnight holding of ID cards and passports, decides on unclaimed documents, and leads the response to any loss.

7. Returning originals to clients

When a case is closed, the case lawyer contacts the client within 5 working days to arrange the return of all originals. The client signs the return section of form LA-07. Another person may collect only with the client's signed letter of authority and a copy of the collector's ID card. If the client does not collect within 90 days of the first contact, the centre sends a registered letter. Documents unclaimed 180 days after closing are referred to the Managing Lawyer. The centre never destroys a client's original document.

8. Loss or damage

Any member of staff who finds that an original is missing or damaged must report it to the Managing Lawyer within 2 hours of discovery and complete incident form LA-12 the same day. The Managing Lawyer informs the client within 24 hours. Staff must not contact the client about it first.

9. Transition

All originals currently held outside the safe must be handed to the Document Custodian with a completed form LA-07 by Friday 16 October 2026. The custodian and the Deputy Custodian will audit every open file from 19 to 23 October 2026.

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